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e. g., *Committee for Public Ed. & Religious Liberty v. Nyquist*, 413 U. S. 756, 794–796 (1973). The Court has consequently made it clear that the Constitution commits the government to a “position of neutrality” in respect to religion. *School Dist. of Abington Township v. Schempp*, 374 U. S. 203, 226 (1963).

The inherent tension between the Establishment and Free Exercise Clauses means, however, that the “course of constitutional neutrality in this area cannot be an absolutely straight line.” *Walz*, 397 U. S., at 669. Indeed, “rigidity could well defeat the basic purpose of these provisions, which is to insure that no religion be sponsored or favored, none commanded, and none inhibited.” *Ibid.*

That, in significant part, is why the Court has held that “there is room for play in the joints” between the Clauses’ express prohibitions that is “productive of a benevolent neutrality,” allowing “religious exercise to exist without sponsorship and without interference.” *Ibid.* It has held that there “are some state actions permitted by the Establishment Clause but not required by the Free Exercise Clause.” *Locke*, 540 U. S., at 719; see *Cutter v. Wilkinson*, 544 U. S. 709, 719 (2005). And that “play in the joints” should, in my view, play a determinative role here.

It may be that, under our precedents, the Establishment Clause does not *forbid* Montana to subsidize the education of petitioners’ children. But the question here is whether the Free Exercise Clause *requires* it to do so. The majority believes that the answer to that question is “yes.” It writes that “once a State decides” to support nonpublic education, “it cannot disqualify some private schools solely because they are religious.” *Ante*, at 487. I shall explain why I disagree.

B

As the majority acknowledges, two cases are particularly relevant: *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449, and *Locke v. Davey*, 540 U. S. 712. In

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Trinity Lutheran, we considered whether Missouri could exclude a church-owned preschool from applying for a grant to renovate its playground. The Court assumed that the Establishment Clause *permitted* the State to make grants of this kind to church-affiliated schools. See 582 U. S., at 458. But, the Court added, this did not “answer the question” because there is “‘play in the joints’ between what the Establishment Clause permits and the Free Exercise Clause compels.” *Ibid.* The Court therefore went on to consider the burdens that Missouri’s law imposed upon the church’s right to free exercise.

By excluding schools with ties to churches, the Court wrote, the State’s law put the church “to a choice: It may participate in an otherwise available benefit program or remain a religious institution.” *Id.*, at 462. That kind of “‘indirect coercion,’” the Court explained, “imposes a penalty on the free exercise of religion that triggers the most exacting scrutiny.” *Id.*, at 462, 463. Finding that a State’s “policy preference for skating as far as possible from religious establishment concerns” could not satisfy that standard, the Court held that the Free Exercise Clause *required* Missouri to include church-affiliated schools as candidates for playground renovation grants. *Id.*, at 466.

We confronted a different kind of aid program, and came to a different conclusion, in *Locke*. There, we reviewed a Washington law that offered taxpayer-funded scholarships to college students on the express condition that they not pursue degrees that were “‘devotional in nature or designed to induce religious belief.’” 540 U. S., at 716; see *id.*, at 719, n. 2 (quoting Wash. Const., Art. II, § 11). Again, the Court assumed that the Establishment Clause *permitted* the State to support students seeking such degrees. 540 U. S., at 719. But the Court concluded that the Free Exercise Clause did not *require* it to do so.

The Court observed that the State’s decision not to fund devotional degrees did not penalize religious exercise or re-

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quire anyone to choose between their faith and a “government benefit.” *Id.*, at 721. Rather, the State had “merely chosen not to fund a distinct category of instruction” that was “essentially religious.” *Ibid.* Although Washington’s Constitution drew “a more stringent line than that drawn by the United States Constitution,” the Court found that the State’s position was consistent with the widely shared view, dating to the founding of the Republic, that taxpayer-supported religious indoctrination poses a threat to individual liberty. *Id.*, at 722. Given this “historic and substantial state interest,” the Court concluded, it would be inappropriate to subject Washington’s law to a “presumption of unconstitutionality.” *Id.*, at 725. And, without such a presumption, the claim that the exclusion of devotional studies violated the Free Exercise Clause “must fail,” for “[i]f any room exists between the two Religion Clauses, it must be here.” *Ibid.*; see *id.*, at 720, n. 3.

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C

The majority finds that the school-playground case, *Trinity Lutheran*, and not the religious-studies case, *Locke*, controls here. I disagree. In my view, the program at issue here is strikingly similar to the program we upheld in *Locke* and importantly different from the program we found unconstitutional in *Trinity Lutheran*. Like the State of Washington in *Locke*, Montana has chosen not to fund (at a distance) “an essentially religious endeavor”—an education designed to “‘induce religious faith.’” *Locke*, 540 U.S., at 716, 721. That kind of program simply cannot be likened to Missouri’s decision to exclude a church school from applying for a grant to resurface its playground.

The Court in *Locke* recognized that the study of devotional theology can be “akin to a religious calling as well as an academic pursuit.” *Id.*, at 721. Indeed, “the shaping, through primary education, of the next generation’s minds and spirits” may be as critical as training for the ministry,

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which itself, after all, is but one of the activities necessary to help ensure a religion's survival. *Zelman v. Simmons-Harris*, 536 U. S. 639, 725 (2002) (BREYER, J., dissenting). That is why many faith leaders emphasize the central role of schools in their religious missions. See, e.g., Southern Baptist Convention, Resolution on the Importance of Christ-Centered Education (2014) (underscoring the power of Christian schools to “win students to salvation through evangelism, make disciples, and foster spiritual development”); The Holy See, John Paul II, *Catechesi Tradendae* ¶69 (Oct. 16, 1979) (explaining that “the underlying reason for” the Catholic school “is precisely the quality of the religious instruction integrated into the education of the pupils”). It is why at least some teachers at religious schools see their work as a form of ministry. See, e.g., *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171, 192 (2012). And petitioners have testified that it is a “major reason” why they chose religious schools for their children. App. to Pet. for Cert. 152 (the school teaches “the same Christian values that I teach at home”).

Nothing in the Constitution discourages this type of instruction. To the contrary, the Free Exercise Clause draws upon a history that places great value upon the freedom of parents to teach their children the tenets of their faith. Cf. *Wisconsin v. Yoder*, 406 U. S. 205, 213–214 (1972). The leading figures of America's Enlightenment followed in the footsteps of those who, after the English civil wars, came to believe “with a passionate conviction that they were entitled to worship God in their own way and to teach their children and to form their characters in the way that seemed to them calculated to impress the stamp of the God-fearing man.” C. Radcliffe, *The Law & Its Compass* 71 (1960). But the bitter lesson of religious conflict also inspired the Establishment Clause and the state-law bans on compelled support the Court cited in *Locke*. Cf., e.g., J. Madison, Memorial and Remonstrance Against Religious Assessments, reprinted in

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Everson v. Board of Ed. of Ewing, 330 U.S. 1, 69 (1947) (appendix to dissent of Rutledge, J.) (recalling the “[t]orrents of blood” shed in efforts to establish state religion).

What, then, is the difference between *Locke* and the present case? And what is it that leads the majority to conclude that funding the study of religion is more like paying to fix up a playground (*Trinity Lutheran*) than paying for a degree in theology (*Locke*)? The majority’s principal argument appears to be that, as in *Trinity Lutheran*, Montana has excluded religious schools from its program “solely because of the religious character of the schools.” *Ante*, at 476. The majority seeks to contrast this *status*-based discrimination with the program at issue in *Locke*, which it says denied scholarships to divinity students based on the religious *use* to which they put the funds—*i. e.*, training for the ministry, as opposed to secular professions. See *ante*, at 478 (citing *Trinity Lutheran*, 582 U.S., at 461–462).

It is true that Montana’s no-aid provision broadly bars state aid to schools based on their religious affiliation. But this case does not involve a claim of status-based discrimination. The schools do not apply or compete for scholarships, they are not parties to this litigation, and no one here purports to represent their interests. We are instead faced with a suit by *parents* who assert that *their* free exercise rights are violated by the application of the no-aid provision to prevent them from *using* taxpayer-supported scholarships to attend the schools of their choosing. In other words, the problem, as in *Locke*, is what petitioners “‘propos[e] to do—use the funds to’” obtain a religious education. *Ante*, at 479 (quoting *Trinity Lutheran*, 582 U.S., at 464).

Even if the schools’ status were relevant, I do not see what bearing the majority’s distinction could have here. There is no dispute that religious schools seek generally to inspire religious faith and values in their students. How else could petitioners claim that barring them from using state aid to attend these schools violates their free exercise rights?

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Thus, the question in this case—unlike in *Trinity Lutheran*—boils down to what the schools would *do* with state support. And the upshot is that here, as in *Locke*, we confront a State’s decision not to fund the inculcation of religious truths.

The majority next contends that there is no “‘historic and substantial’ tradition against aiding” religious schools “comparable to the tradition against state-supported clergy invoked by *Locke*.” *Ante*, at 483. But the majority ignores the reasons for the founding era bans that we relied upon in *Locke*.

“Perhaps the most famous example,” *Locke*, 540 U. S., at 722, n. 6, is the 1786 defeat of a Virginia bill (often called the Assessment Bill) that would have levied a tax in support of “learned teachers” of “the Christian Religion.” A Bill Establishing a Provision for Teachers of the Christian Religion, reprinted in *Everson*, 330 U. S., at 72 (supplemental appendix to dissent of Rutledge, J.). In his Memorial and Remonstrance against that proposal, James Madison argued that compelling state sponsorship of religion in this way was “a signal of persecution” that “degrades from the equal rank of Citizens all those whose opinions in Religion do not bend to those of the Legislative authority.” *Id.*, at 68–69. Even among those who might benefit from such a tax, Madison warned, the bill threatened to “destroy that moderation and harmony which the forbearance of our laws to intermeddle with Religion, has produced amongst its several sects.” *Id.*, at 69.

The opposition galvanized by Madison’s Remonstrance not only scuttled the Assessment Bill; it spurred Virginia’s Assembly to enact a very different law, the Bill for Religious Liberty drafted by Thomas Jefferson. See Brant, Madison: On the Separation of Church and State, 8 Wm. & Mary Q. 3, 11 (1951); Drakeman, Religion and the Republic: James Madison and the First Amendment, 25 J. Church & St. 427, 436 (1983); *Everson*, 330 U. S., at 12.

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Like the Remonstrance, Jefferson's bill emphasized the risk to religious liberty that state-supported religious indoctrination threatened. "[T]o compel a man to furnish contributions of money for the propagation of opinions which he disbelieves," the preamble declared, "is sinful and tyrannical." A Bill for Establishing Religious Freedom (1779), in 2 The Papers of Thomas Jefferson 545 (J. Boyd ed. 1950). The statute accordingly provided "that no man shall be compelled to frequent or support any religious worship, place, or ministry whatsoever." *Id.*, at 546. Similar proscriptions were included in the early constitutions of many States. See *Locke*, 540 U. S., at 723 (collecting examples).

I see no meaningful difference between the concerns that Madison and Jefferson raised and the concerns inevitably raised by taxpayer support for scholarships to religious schools. In both instances state funds are sought for those who would "instruct such citizens, as from their circumstances and want of education, cannot otherwise attain such knowledge" in the tenets of religious faith. A Bill Establishing a Provision for Teachers of the Christian Religion, reprinted in *Everson*, 330 U. S., at 72. In both cases, that would compel taxpayers to support "the propagation of opinions" on matters of religion with which they may disagree, by teachers whom they have not chosen. A Bill for Establishing Religious Freedom, *supra*, at 545. And, in both cases, the allocation of state aid to such purposes threatens to "destroy that moderation and harmony which the forbearance of our laws to intermeddle with Religion, has produced amongst its several sects." Memorial and Remonstrance, reprinted in *Everson*, 330 U. S., at 69.

The majority argues that at least some early American governments saw no contradiction between bans on compelled support for clergy and taxpayer support for religious schools or universities. See *ante*, at 481, n. 3. That some States appear not to have read their prohibitions on compelled support to bar this kind of sponsorship, however, does

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not require us to blind ourselves to the obvious contradiction between the *reasons* for prohibiting compelled support and the effect of taxpayer funding for religious education. Madison and Jefferson saw it clearly. They opposed including theological professorships in their plans for the public University of Virginia and the Commonwealth hesitated even to grant charters to religiously affiliated schools. See Buckley, *After Disestablishment: Thomas Jefferson's Wall of Separation in Antebellum Virginia*, 61 J. So. Hist. 445, 453 (1995); Brant, *supra*, at 19–20.

As for the majority's examples, it suffices to say that the record is not so simple. In Georgia, the Governor advocated for school funding legislation in terms that mirrored the language of Virginia's Assessment Bill. See R. Gabel, *Public Funds for Church and Private Schools* 241–242 (1937). And the general levies the majority cites from Pennsylvania and New Jersey were not adopted until after the founding. See *id.*, at 215–216; see C. Kaestle, *Pillars of the Republic: Common Schools and American Society, 1780–1860*, pp. 166–167 (1983).

That is not to deny that the history of state support for denominational schools is “‘complex.’” *Ante*, at 483. But founding era attitudes toward compelled support of clergy were no less complex. Many prominent members of the founding generation, including George Washington, Patrick Henry, and John Marshall, supported Virginia's Assessment Bill. See Dreisbach, *George Mason's Pursuit of Religious Liberty in Revolutionary Virginia*, 108 Va. Mag. Hist. & Biography 5, 31 (2000). Some who supported this kind of government aid thought it posed no threat to freedom of conscience; others denied that provisions for aid to religion amounted to an “establishment” at all. See *id.*, at 34–35; D. Drakeman, *Church, State, and Original Intent* 224–225 (2010). Indeed, at least one historian has persuasively argued that it is next to impossible to attribute to the Founders any uniform understanding as to what constitutes, in the

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Constitution's phrase, "an establishment of religion." *Id.*, at 216–229, 260–262.

This diversity of opinion made no difference in *Locke* and it makes no difference here. For our purposes it is enough to say that, among those who gave shape to the young Republic were people, including Madison and Jefferson, who perceived a grave threat to individual liberty and communal harmony in tax support for the teaching of religious truths. These "historic and substantial" concerns have consistently guided the Court's application of the Religion Clauses since. *Locke*, 540 U. S., at 725; see, e. g., *Nyquist*, 413 U. S., at 794–798; *Walz*, 397 U. S., at 695 (Harlan, J., concurring); *Schempp*, 374 U. S., at 307 (Goldberg, J., joined by Harlan, J., concurring). The Court's special attention to these views should come as no surprise, for the risks the Founders saw have only become more apparent over time. In the years since the Civil War, the number of religions practiced in our country has grown to scores. And that has made it more difficult to avoid suspicions of favoritism—or worse—when government becomes entangled with religion.

Nor can I see how it could make a difference that the Establishment Clause might *permit* the State to subsidize religious education through a program like Montana's. The tax benefit here inures to donors, who choose to support a particular scholarship organization. That organization, in turn, awards scholarships to students for the qualifying school of their choice. The majority points to cases in which we have upheld programs where, as here, state funds make their way to religious schools by means of private choices. *Ante*, at 474 (citing *Zelman*, 536 U. S., at 649–653). As the Court acknowledged in *Trinity Lutheran*, however, that does not answer the question whether providing such aid is *required*. 582 U. S., at 458.

Neither does it address related concerns that I have previously described. Private choice cannot help the taxpayer who does not want to finance the propagation of religious

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beliefs, whether his own or someone else's. It will not help religious minorities too few in number to support a school that teaches their beliefs. And it will not satisfy those whose religious beliefs preclude them from participating in a government-sponsored program. Some or many of the persons who fit these descriptions may well feel ignored—or worse—when public funds are channeled to religious schools. See *Zelman*, 536 U.S., at 728 (BREYER, J., dissenting). These feelings may, in turn, sow religiously inspired political conflict and division—a risk that is considerably greater where States are *required* to include religious schools in programs like the one before us here. And it is greater still where, as here, those programs benefit only a handful of a State's many religious denominations. See *ibid.*; Big Sky Scholarships, Schools (2019), www.bigskyscholarships.org/schools.

Indeed, the records of Montana's constitutional convention show that these concerns were among the reasons that a religiously diverse group of delegates, including faith leaders of different denominations, supported the no-aid provision. See Brief for Respondents 18–23; Brief for Montana Constitutional Convention Delegates as *Amici Curiae* 19–21, 22, 24–25 (noting support for the provision from a Congregationalist minister, the Roman Catholic priest responsible for Catholic schools in the Diocese of Great Falls, a Methodist pastor, a Presbyterian minister, and the Montana Catholic Conference, among others).

In an effort to downplay this risk and further distinguish this case from *Locke*, the majority contends that “Montana's Constitution does not zero in on any particular ‘essentially religious’ course of instruction.” *Ante*, at 480 (quoting *Locke*, 540 U. S., at 721). But this is not a facial challenge to the no-aid provision. See Reply Brief 8. As applied, the provision affects only a scholarship program that, in effect, uses taxpayer funds to help pay for student tuition at religious schools. We have long recognized that unrestricted cash

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payments of this kind raise special establishment concerns. Cf. *Mitchell v. Helms*, 530 U. S. 793, 818–819 (2000) (plurality opinion); see *id.*, at 848–849 (O'Connor, J., concurring in judgment). And for good reason: The subsidy petitioners demand would go to pay for, among other things, the salaries of teachers and administrators who have been found in at least some instances to so “personify [the] beliefs” of the churches that employ them that they are quite literally “ministers” within the meaning of the First Amendment. *Hosanna-Tabor*, 565 U. S., at 188.

If, for 250 years, we have drawn a line at forcing taxpayers to pay the salaries of those who teach their faith from the pulpit, I do not see how we can today require Montana to adopt a different view respecting those who teach it in the classroom.

II

In reaching its conclusion that the Free Exercise Clause requires Montana to allow petitioners to use taxpayer-supported scholarships to pay for their children’s religious education, the majority makes several doctrinal innovations that, in my view, are misguided and threaten adverse consequences.

Although the majority refers in passing to the “play in the joints” between that which the Establishment Clause forbids and that which the Free Exercise Clause requires, its holding leaves that doctrine a shadow of its former self. See, *e. g.*, *Cutter*, 544 U. S., at 719; *Walz*, 397 U. S., at 669. Having concluded that there is no obstacle to subsidizing a religious education under our Establishment Clause precedents, the majority says little more about Montana’s antiestablishment interests or the reasoning that underlies them. It does not engage with the State’s concern that its funds not be used to support religious teaching. Instead, the Court holds that it need not consider how Montana’s funds would be used because, in its view, all distinctions on the basis of religion—whether in respect to playground grants or devotional teach-

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ing—are similarly and presumptively unconstitutional. See *ante*, at 476–477.

Setting aside the problems with the majority’s characterization of this case, *supra*, at 526, I think the majority is wrong to replace the flexible, context-specific approach of our precedents with a test of “strict” or “rigorous” scrutiny. And it is wrong to imply that courts should use that same heightened scrutiny whenever a government benefit is at issue. See *ante*, at 476, 478.

Experience has taught us that “we can only dimly perceive the boundaries of permissible government activity in this sensitive area of constitutional adjudication.” *Tilton v. Richardson*, 403 U. S. 672, 678 (1971) (plurality opinion); see also *Schempp*, 374 U. S., at 306 (opinion of Goldberg, J., joined by Harlan, J.) (there is “no simple and clear measure which by precise application can readily and invariably demark the permissible from the impermissible”); *Walz*, 397 U. S., at 669 (“[R]igidity could well defeat the basic purpose of these provisions, which is to insure that no religion be sponsored or favored, none commanded, and none inhibited”). If the Court has found it possible to walk what we have called the “‘tight rope’” between the two Religion Clauses, it is only by “preserving doctrinal flexibility and recognizing the need for a sensible and realistic application” of those provisions. *Yoder*, 406 U. S., at 221.

The Court proceeded in just this way in *Locke*. It considered the same precedents the majority today cites in support of its presumption of unconstitutionality. But it found that applying the presumption set forth in those cases to Washington’s decision not to fund devotional degrees would “extend” them “well beyond not only their facts but their reasoning.” 540 U. S., at 720. In my view, that analysis applies equally to this case.

Montana’s law does not punish religious exercise. Cf. *Locke*, 540 U. S., at 720 (citing *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520, 535 (1993)); see *ante*,

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at 478. It does not deny anyone, because of their faith, the right to participate in political affairs of the community. Cf. *Locke*, 540 U. S., at 720–721 (citing *McDaniel v. Paty*, 435 U. S. 618, 626 (1978)); see *ante*, at 478. And it does not require students to choose between their religious beliefs and receiving secular government aid such as unemployment benefits. Cf. *Locke*, 540 U. S., at 720 (citing *Sherbert v. Verner*, 374 U. S. 398, 403–404 (1963)); see *ante*, at 478. The State has simply chosen not to fund programs that, in significant part, typically involve the teaching and practice of religious devotion. And “a legislature’s decision not to subsidize the exercise of a fundamental right does not infringe the right, and thus is not subject to strict scrutiny.” *Regan v. Taxation With Representation of Wash.*, 461 U. S. 540, 549 (1983); see also *Lyng v. Automobile Workers*, 485 U. S. 360, 368 (1988).

I disagree, then, with what I see as the majority’s doctrinal omission, its misplaced application of a legal presumption, and its suggestion that this presumption is appropriate in many, if not all, cases involving government benefits. As I see the matter, our differences run deeper than a simple disagreement about the application of prior case law.

The Court’s reliance in our prior cases on the notion of “play in the joints,” our hesitation to apply presumptions of unconstitutionality, and our tendency to confine benefit-related holdings to the context in which they arose all reflect a recognition that great care is needed if we are to realize the Religion Clauses’ basic purpose “to promote and assure the fullest scope of religious liberty and religious tolerance for all and to nurture the conditions which secure the best hope of attainment of that end.” *Schempp*, 374 U. S., at 305 (opinion of Goldberg, J., joined by Harlan, J.); see *Van Orden v. Perry*, 545 U. S. 677, 698 (2005) (BREYER, J., concurring in judgment).

For one thing, government benefits come in many shapes and sizes. The appropriate way to approach a State’s benefit-

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related decision may well vary depending upon the relation between the Religion Clauses and the specific benefit and restriction at issue. For another, disagreements that concern religion and its relation to a particular benefit may prove unusually difficult to resolve. They may involve small but important details of a particular benefit program. Does one detail affect one religion negatively and another positively? What about a religion that objects to the particular way in which the government seeks to enforce mandatory (say, qualification-related) provisions of a particular benefit program? See, e. g., *New Life Baptist Church Academy v. East Longmeadow*, 885 F. 2d 940 (CA1 1989) (BREYER, J., for the court). Or the religious group that for religious reasons cannot accept government support? See Brief for Respondents 20–21 (noting, *inter alia*, Seventh-day Adventists’ support for Montana’s no-aid provision on this ground). And what happens when qualification requirements mean that government money flows to one religion rather than another? Courts are ill equipped to deal with such conflicts. Yet, in a Nation with scores of different religions, many such disagreements are possible. And I have only scratched the surface.

The majority claims that giving weight to these considerations would be a departure from our precedent and give courts too much discretion to interpret the Religion Clauses. See *ante*, at 483–484. But we have long understood that the “application” of the First Amendment’s mandate of neutrality “requires interpretation of a delicate sort.” *Schempp*, 374 U. S., at 226. “Each value judgment under the Religion Clauses,” we have explained, must “turn on whether particular acts in question are intended to establish or interfere with religious beliefs and practices or have the effect of doing so.” *Walz*, 397 U. S., at 669.

Nor does the majority’s approach avoid judicial entanglement in difficult and sensitive questions. To the contrary, as I have just explained, it burdens courts with the still more

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complex task of untangling disputes between religious organizations and state governments, instead of giving deference to state legislators' choices to avoid such issues altogether. At the same time, it puts States in a legislative dilemma, caught between the demands of the Free Exercise and Establishment Clauses, without "breathing room" to help ameliorate the problem.

I agree with the majority that it is preferable in some areas of the law to develop generally applicable tests. The problem, as our precedents show, is that the interaction of the Establishment and Free Exercise Clauses makes it particularly difficult to design a test that vindicates the Clauses' competing interests in all—or even most—cases. That is why, far from embracing mechanical formulas, our precedents repeatedly and frankly acknowledge the need for precisely the kind of "judgment-by-judgment analysis" the majority rejects. *Ante*, at 484; see, e.g., *Walz*, 397 U. S., at 669. "The standards" of our prior decisions, we have said, "should rather be viewed as guidelines with which to identify instances in which the objectives of the Religion Clauses have been impaired." *Tilton*, 403 U. S., at 678 (plurality opinion); accord, *Nyquist*, 413 U. S., at 773, n. 31.

The Court's occasional efforts to declare rules in spite of this experience have failed to produce either coherence or consensus in our First Amendment jurisprudence. See *Van Orden*, 545 U. S., at 697 (opinion of BREYER, J.) (listing examples). The persistence of such disagreements bears out what I have said—namely, that rigid, bright-line rules like the one the Court adopts today too often work against the underlying purposes of the Religion Clauses. And a test that fails to advance the Clauses' purposes is, in my view, far worse than no test at all.

Consider some of the practical problems that may arise from the Court's holding. The States have taken advantage of the "play in the joints" between the Religion Clauses to craft programs of public aid to education that address their

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local needs. Many provide assistance to families with students in nonpublic schools, ranging from scholarships to tax credits and deductions that reimburse tuition expenses. See Dept. of Ed., A. Duncan et al., *Education Options in the States* 3–6 (2009). Although most state constitutions today have no-aid provisions like Montana’s, those provisions are only one part of a broader system of local regulation. See App. D to Brief for Respondents. Some States have concluded that their no-aid provisions do not bar scholarships to students at religious schools, while others without such clauses have nevertheless chosen not to fund religious education. See Brief for State of Colorado et al. as *Amici Curiae* 6–7; Brief for State of Maine as *Amicus Curiae* 10–15. Today’s decision upends those arrangements without stopping to ask whether they might actually further the objectives of the Religion Clauses in some or even many cases.

And what are the limits of the Court’s holding? The majority asserts that States “need not subsidize private education.” *Ante*, at 487. But it does not explain why that is so. If making scholarships available to only secular nonpublic schools exerts “coercive” pressure on parents whose faith impels them to enroll their children in religious schools, then how is a State’s decision to fund only secular *public* schools any less coercive? Under the majority’s reasoning, the parents in both cases are put to a choice between their beliefs and a taxpayer-sponsored education.

Accepting the majority’s distinction between public and nonpublic schools does little to address the uncertainty that its holding introduces. What about charter schools? States vary widely in how they permit charter schools to be structured, funded, and controlled. See Mead, *Devilish Details: Exploring Features of Charter School Statutes That Blur the Public/Private Distinction*, 40 Harv. J. Legis. 349, 353–357, 367–368 (2003). How would the majority’s rule distinguish between those States in which support for charter schools is akin to public school funding and those in which it

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triggers a constitutional obligation to fund private religious schools? The majority's rule provides no guidance, even as it sharply limits the ability of courts and legislatures to balance the potentially competing interests that underlie the Free Exercise and Antiestablishment Clauses.

* * *

It is not easy to discern “the boundaries of the neutral area between” the two Religion Clauses “within which the legislature may legitimately act.” *Tilton*, 403 U.S., at 677 (plurality opinion). And it is more difficult still in cases, such as this one, where the Constitution's policy in favor of free exercise, on one hand, and against state sponsorship, on the other, are in conflict. In such cases, I believe there is “no test-related substitute for the exercise of legal judgment.” *Van Orden*, 545 U.S., at 700 (opinion of BREYER, J.). That judgment “must reflect and remain faithful to the underlying purposes of the Clauses, and it must take account of context and consequences measured in light of those purposes.” *Ibid.* Here, those purposes, along with the examples set by our decisions in *Locke* and *Trinity Lutheran*, lead me to believe that Montana's differential treatment of religious schools is constitutional. “If any room exists between the two Religion Clauses, it must be here.” *Locke*, 540 U.S., at 725. For these reasons, I respectfully dissent from the Court's contrary conclusion.

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The majority holds that a Montana scholarship program unlawfully discriminated against religious schools by excluding them from a tax benefit. The threshold problem, however, is that such tax benefits no longer exist for anyone in the State. The Montana Supreme Court invalidated the program on state-law grounds, thereby foreclosing the as-applied challenge petitioners raise here. Indeed, nothing required the state court to uphold the program or the state

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legislature to maintain it. The Court nevertheless reframes the case and appears to ask whether a longstanding Montana constitutional provision is facially invalid under the Free Exercise Clause, even though petitioners disavowed bringing such a claim. But by resolving a constitutional question not presented, the Court fails to heed Article III principles older than the Religion Clause it expounds. *Coleman v. Thompson*, 501 U. S. 722, 730 (1991) (forbidding “resolution of a federal question” that “cannot affect” a state-court judgment).

Not only is the Court wrong to decide this case at all, it decides it wrongly. In *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449 (2017), this Court held, “for the first time, that the Constitution requires the government to provide public funds directly to a church.” *Id.*, at 472 (SOTOMAYOR, J., dissenting). Here, the Court invokes that precedent to require a State to subsidize religious schools if it enacts an education tax credit. Because this decision further “slights both our precedents and our history” and “weakens this country’s longstanding commitment to a separation of church and state beneficial to both,” *ibid.*, I respectfully dissent.

I

A

The Montana Supreme Court invalidated a state tax-credit program because it was inconsistent with the Montana Constitution’s “no-aid provision,” Art. X, §6(1), which forbids government appropriations for sectarian purposes, including funding religious schools. 393 Mont. 446, 467–468, 435 P. 3d 603, 614 (2018). In so doing, the court expressly declined to resolve federal constitutional issues. “Having concluded the Tax Credit Program violates” the no-aid provision, the court held, “it is not necessary to consider federal precedent interpreting the First Amendment’s less-restrictive Establishment Clause.” *Ibid.* So too the court declined to ground its holding on the Free Exercise Clause. *Ibid.* The court

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also remedied the only potential harm of discriminatory treatment by striking down the program altogether. After the state court's decision, neither secular nor sectarian schools receive the program's tax benefits.

Petitioners' free exercise claim is not cognizable. The Free Exercise Clause, the Court has said, protects against "indirect coercion or penalties on the free exercise of religion." *Lyng v. Northwest Indian Cemetery Protective Assn.*, 485 U.S. 439, 450 (1988). Accordingly, this Court's cases have required not only differential treatment, cf. *ante*, at 477–478, but also a resulting burden on religious exercise, *Lyng*, 485 U.S., at 450–451.

Neither differential treatment nor coercion exists here because the Montana Supreme Court invalidated the tax-credit program entirely. 393 Mont., at 467–468, 435 P. 3d, at 614. Because no secondary school (secular or sectarian) is eligible for benefits, the state court's ruling neither treats petitioners differently based on religion nor burdens their religious exercise. See *ante*, at 516–520 (GINSBURG, J., dissenting). Petitioners remain free to send their children to the religious school of their choosing and to exercise their faith.

To be sure, petitioners may want to apply for scholarships and would prefer that Montana subsidize their children's religious education. But this Court had never before held unconstitutional government action that merely failed to benefit religious exercise. "The crucial word in the constitutional text is 'prohibit': 'For the Free Exercise Clause is written in terms of what the government cannot do to the individual, not in terms of what the individual can exact from the government.'" *Lyng*, 485 U.S., at 451 (quoting *Sherbert v. Verner*, 374 U.S. 398, 412 (1963) (Douglas, J., concurring)). Put another way, the Constitution does not compel Montana to create or maintain a tax subsidy.

Notably, petitioners did not allege that the no-aid provision itself caused their harm or that invalidating the entire tax-credit scheme would create independent constitutional

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concerns. Even now, petitioners disclaim a facial challenge to the no-aid provision. Reply Brief 8, 20–22. Petitioners thus have no cognizable as-applied claim arising from the disparate treatment of religion, because there is no longer a program to which Montana’s no-aid provision can apply.

Nor is it enough that petitioners might wish that Montana’s no-aid provision were no longer good law. Petitioners identify no disparate treatment traceable to the state constitutional provision that they challenge because the tax-credit program no longer operates. See *Simon v. Eastern Ky. Welfare Rights Organization*, 426 U. S. 26, 41–42, 44–46 (1976).¹ Short of ordering Montana to create a religious subsidy that Montana law does not permit, there is nothing for this Court to do.²

¹To revive their as-applied challenge, petitioners rely on *Griffin v. School Bd. of Prince Edward Cty.*, 377 U. S. 218 (1964), for the proposition that eliminating a public benefit does not always remedy discrimination. See Reply Brief 5. But *Griffin* is inapposite. There, a Virginia county closed its public schools and so-called “private schools” were set up in their place to avoid a court desegregation order. See 377 U. S., at 223. These so-called private schools “were open to whites only and . . . were in fact run by a practical partnership between State and county, designed to preserve segregated education.” *Palmer v. Thompson*, 403 U. S. 217, 221–222 (1971). That is nothing like what the Montana Supreme Court’s remedy achieved here. Nor have petitioners said otherwise; there is no allegation that Montana confers clandestine tax credits solely to secular schools.

²Petitioners here have not asserted a free exercise claim on a theory that they were victims of religious animus, either. Cf. *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520, 533 (1993). Instead, one concurrence seeks to make the argument for them while attempting to compare the state constitutional provision here with a nonunanimous jury rule rooted in racial animus. *Ante*, at 497 (opinion of ALITO, J.) (citing the dissent in *Ramos v. Louisiana*, 590 U. S. 83 (2020)). But those questions are not before the Court.

In any case, the concurrence’s arguments are as misguided as they are misplaced. Citing the Court’s opinion in *Ramos*, the concurrence maintains that a law’s “‘uncomfortable past’ must still be ‘[e]xamined.’” *Ante*, at 505–506 (opinion of ALITO, J.). But as previously explained: “Where a law